

CRIMINAL LAW

Tuesday, Sept. 8
(Lecture 3)

*This slide will help you
prepare for today's
class.*

- We pick up where we left off, on the topic of sentencing Indigenous offenders. Please be prepared to discuss *Ipeelee*.
- We will then turn to our next topic: sentencing Black offenders. Please be prepared to discuss *R. v. Morris*.
- Finally, if we have time, we will make a start on our next unit, “*The Criminal Justice Process*.” Please be prepared to ask any questions you may have about the assigned materials associated with that unit.

CRIMINAL LAW

**Tuesday, September 8
(Lecture 3)**

Objectives for Week 1 (continued)

6. Explain the distinct approach to sentencing Indigenous offenders mandated by s. 718.2(e) of the *Criminal Code*, and which was developed in *Gladue* and *Ipeelee*, including how it is applied, and its stated purposes.
7. Reflect on the arguments for and against that distinct approach (some of which are canvassed in *Ipeelee*).

Other Sentencing Principles (2/2)

s. 718.2 [...]

(e) all available sanctions, other than imprisonment, that are reasonable in the circumstances and consistent with the harm done to victims or to the community should be considered for all offenders, with particular attention to the circumstances of Aboriginal offenders.

The Overrepresentation of Indigenous Persons in Canadian Prisons (1989-1999)

- **1989-1994: 11.8% of admissions to federal prison (average over the period; 3% total population)**
- **1996: s. 718.2(e) introduced**
- **1999: *R. v. Gladue*, [1999] 1 SCR 688**

Gladue Sentencing

... the judge must [also] consider:

(A) The unique systemic or background factors which may have played a part in bringing the particular aboriginal offender before the courts; and

(B) The types of sentencing procedures and sanctions which may be appropriate in the circumstances for the offender because of his or her particular aboriginal heritage or connection.

Judicial Notice

“[C]ourts must take judicial notice of such matters as the history of colonialism, displacement, residential schools and how that history continued to translate into lower educational attainment, lower incomes, higher unemployment, higher rates of substance abuse and suicide, and of course higher levels of incarceration for Aboriginal peoples.

(Ipeelee at para. 60)

Residential Schools

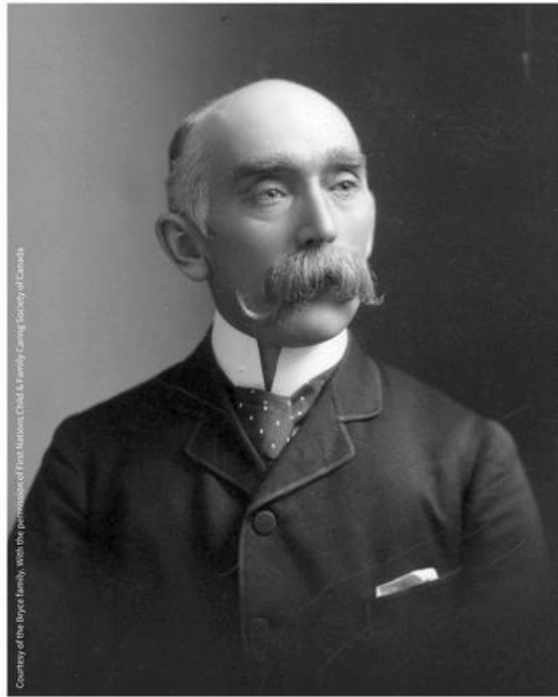


Residential Schools (continued)

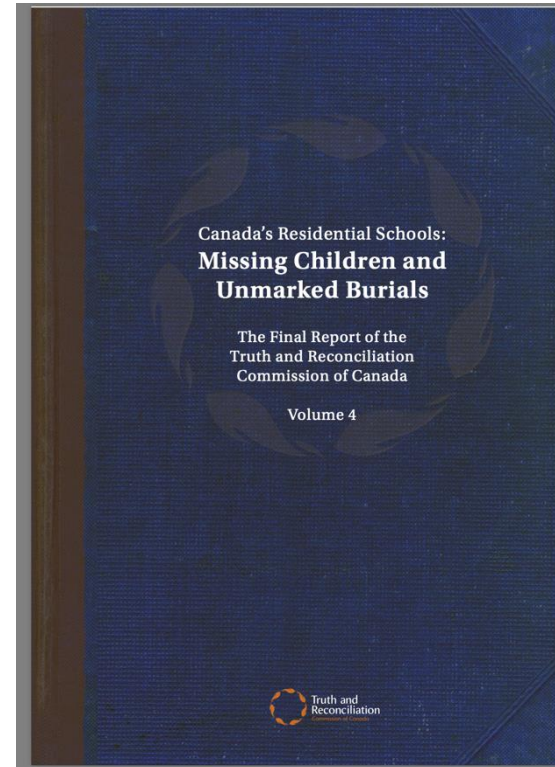
“When the school is on the reserve the child lives with its parents, who are savages; he is surrounded by savages, and though he may learn to read and write his habits, and training and mode of thought are Indian. He is simply a savage who can read and write. [...] Indian children should be withdrawn as much as possible from the parental influence, and the only way to do that would be to put them in central training industrial schools where they will acquire the habits and modes of thought of white men.”

- John A. Macdonald, addressing House of Commons in 1883

Dr. Bryce (1922); TRC (2015)



Dr. Peter Henderson Bryce (1853-1932)
“The Story of a National Crime” (1922)



Truth and Reconciliation
Commission of Canada (2015)

Judicial Notice (continued)

“[C]ourts must take judicial notice of such matters as the history of colonialism, displacement, residential schools and how that history continued to translate into lower educational attainment, lower incomes, higher unemployment, higher rates of substance abuse and suicide, and of course higher levels of incarceration for Aboriginal peoples.

These matters, on their own, do not necessarily justify a different sentence for Aboriginal offenders. Rather, they provide the necessary *context* for understanding and evaluating the case-specific information presented by counsel.”

(Ipeelee at para. 60)

Gladue Sentencing

... the judge must [also] consider:

(A) The unique systemic or background factors which may have played a part in bringing the particular aboriginal offender before the courts; and

(B) The types of sentencing procedures and sanctions which may be appropriate in the circumstances for the offender because of his or her particular aboriginal heritage or connection.

Monture-Okanee

“There is no such thing as an Aboriginal court. Courts are, by their very nature, adversarial. This was not the historic process whereby disputes and disturbances in our communities were resolved. [...] [T]he conversation always ends with the establishment of small pilot projects, diversion initiatives, sentencing circles and the possibility, someday, of Aboriginal courts. [...] These kinds of initiatives are both inadequate and insufficient if the goal of our joint efforts is to ameliorate the existing oppression and discrimination that Aboriginal people face.”

Patricia Monture-Okanee, “Thinking About Aboriginal Justice: Myths and Revolution”

The Overrepresentation of Indigenous Persons in Canadian Prisons After *Gladue* (1989-2012)

- **1989-1994: 11.8% of admissions to federal prison**
- **1996: s. 718.2(e) introduced**
- **1999: *Gladue* decided**
- **2005: 17% of admissions to federal prison**
- **2012: *Ipeelee* decided**

Sentencing Objectives

- Denunciation**
- Deterrence (general, specific)**
- Separation [i.e., incapacitation; isolation]**
- Rehabilitation**
- Reparation**
- Responsibility & acknowledgment**

Criminal Code ss. 718.04 & 718.201

718.04 When a court imposes a sentence for an offence that involved the abuse of a person who is vulnerable because of personal circumstances — including because the person is Aboriginal and female — the court shall give primary consideration to the objectives of denunciation and deterrence of the conduct that forms the basis of the offence.

718.201 A court that imposes a sentence in respect of an offence that involved the abuse of an intimate partner shall consider the increased vulnerability of female persons who are victims, giving particular attention to the circumstances of Aboriginal female victims.

R. v. Ipeelee

“Three interrelated criticisms have been advanced:

- (1) sentencing is not an appropriate means of addressing overrepresentation;**
- (2) the *Gladue* principles provide what is essentially a race-based discount for Aboriginal offenders; and**
- (3) providing special treatment and lesser sentences to Aboriginal offenders is inherently unfair as it creates unjustified distinctions between offenders who are similarly situated, thus violating the principle of sentence parity.” (at para. 64)**

Three Criticisms

- Sentencing not appropriate means of addressing
- “Race-based discount”
- Violates principle of parity

REFLECTION QUESTIONS

- Which of the three criticisms do you think is the most cogent?
- How does the Court respond to that criticism?
- Is the Court’s response convincing? Can you augment or critique the response?

The Overrepresentation of Indigenous Persons in Canadian Prisons After *Ipeelee* (2012-2016)

- **1989-1994: 11.8% of admissions to federal prison**
- **2005: 17% of admissions to federal prison**
- **2012: *Ipeelee* decided**
- **2013: 23.2% of federal inmate population**
 - **Compared to about 4% of overall population**
 - **Rate worse for women, at 33.6%**
- **2016: 25.4% of federal inmate population**
 - **Compared to about 4% of overall population**
 - **Rate worse for women, at 36%**

The Overrepresentation of Indigenous Persons in Canadian Prisons After *Ipeelee* (2018)

“As of March 31, 2018, Indigenous inmates represented 28% of the total federal in-custody population while comprising just 4.3% of the Canadian population. [...]

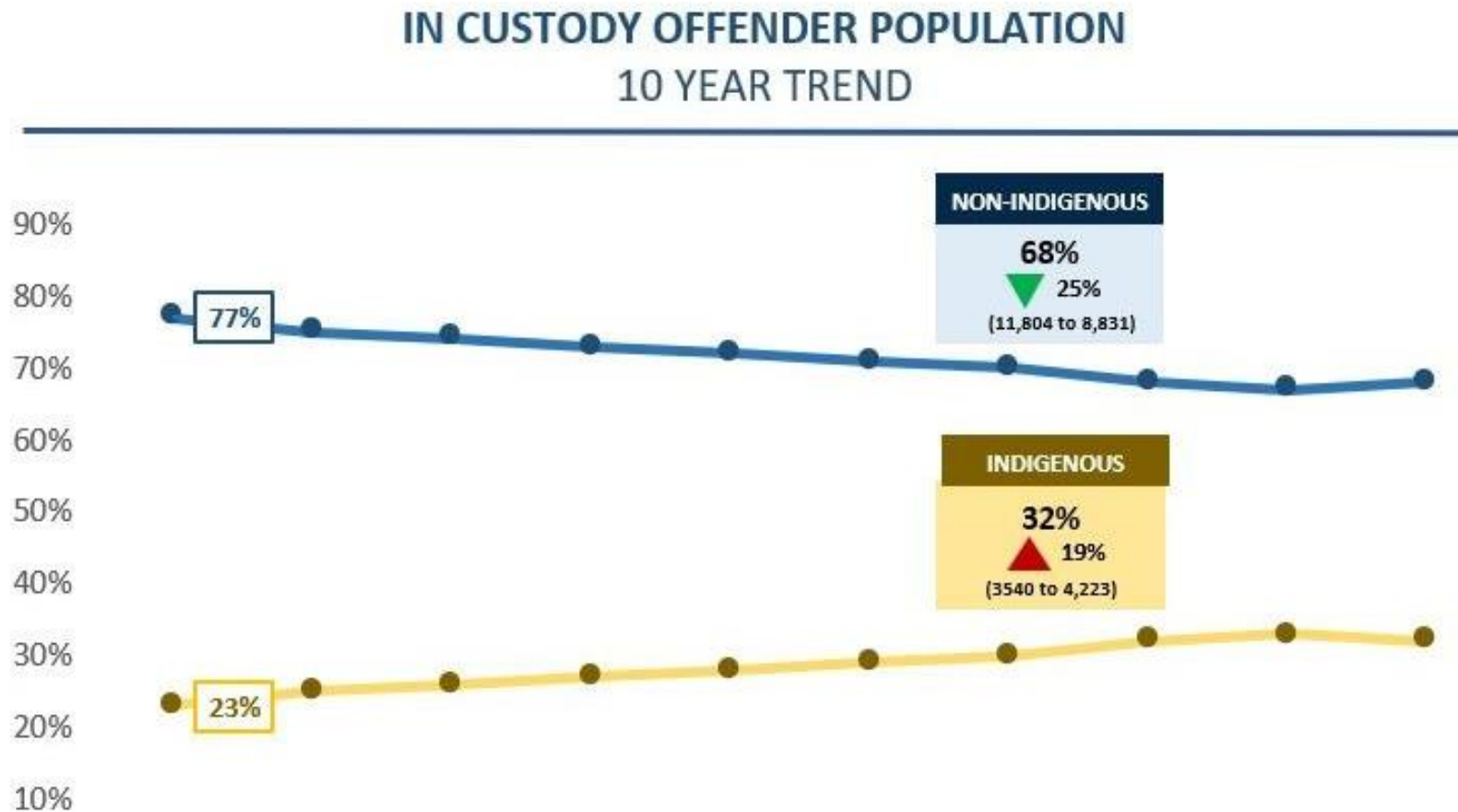
The situation continues to worsen for Indigenous women. [...]. At the end of the reporting period [March 2018], 40% of incarcerated women in Canada were of Indigenous ancestry. These numbers are distressing.”

Office of the Correctional Investigator, Statistical Update on Indigenous Overincarceration, Annual Report 2017-2018 (pp. 61-62)

The Overrepresentation of Indigenous Persons in Canadian Prisons After *Ipeelee* (2020-2021)

- 2020/2021: 18% decline in incarceration rate for Indigenous persons
 - *But compare 27% decline for non-Indigenous persons*
 - *Result: over-representation rate increased by 14% during this period*
- 30% of male admissions (provincial/territorial) & 32% (federal)
- 42% of female custody admissions (provincial/territorial) & 40% (federal)
- 50% of youth admissions to custody (compare 8% of youth population)

The Overrepresentation of Indigenous Persons in Canadian Prisons After *Ipeelee* (“10 year trend”)



Source: Government of Canada

The Overrepresentation of Indigenous Persons in Canadian Prisons After *Ipeelee* (2022-2023)

- **2022/2022:**
 - **5% overall Canadian population**
 - **32% of federal in-custody population**
 - **For Indigenous women, 48% of federal in-custody population**

The Overrepresentation of Indigenous Persons in Canadian Prisons After *Ipeelee* (2023-2024)

- **2023/2024:**
 - **5% overall Canadian population**
 - **33% of admissions to federal in-custody population**
 - **For Indigenous women, 49% of federal admissions**

“There are very real dangers to failing to understand our history and our moment in time. It is easy with the benefit of hindsight to look back at the people who got caught up in the implementation of damaging policies and to judge their failings. It is less easy to take stock of the current moment and assess what role we are playing and how our grandchildren will assess our contributions to justice.”

R v Morrisseau, 2017 ONCJ 307 (per Gibson J.)

Objectives for Week 1 (continued)

6. Explain the distinct approach to sentencing Indigenous offenders mandated by s. 718.2(e) of the *Criminal Code*, and which was developed in *Gladue* and *Ipeelee*, including how it is applied, and its stated purposes.
7. Reflect on the arguments for and against that distinct approach (some of which are canvassed in *Ipeelee*).

Objectives for Week 2

8. Continue to think about sentencing in relation to our “key themes.”
9. Engage in critical analysis about efforts to develop a distinct approach to sentencing Black offenders, including the relationship between those efforts and the *Gladue* framework.

Other Sentencing Principles

s. 718.2 [...]

(e) all available sanctions, other than imprisonment, that are reasonable in the circumstances and consistent with the harm done to victims or to the community should be considered for all offenders, with particular attention to the circumstances of Aboriginal offenders.

Sentencing Black Offenders

IRCAs

- **“Impact of Race and Cultural Assessments” (IRCAs)**
 - **“Cultural Impact Assessments”**
 - **Enhanced Pre-Sentence Reports (EPSR)**
- **“Racism-Conscious Sentencing”**

Sentencing Black Offenders

R v Borde (2003)

R v Borde, 172 CCC (3d) 225 [ONCA (2003), per Rosenberg JA]

“I think that in an appropriate case a sentencing judge might find assistance from the approach described by the court in *Gladue* and *Wells*, even though that approach is grounded in the special reference to aboriginal offenders in s. 718.2. However, this is a matter that should be addressed at trial where the evidence can be tested and its relevance to the particular offender explored.” (para. 30)

Sentencing Black Offenders

R v Hamilton and Mason (2004)

R v Hamilton and Mason, (2004) 73 OR (3d) [ONCA, per Doherty JA]

“Parliament has chosen to identify aboriginals as a group with respect to whom the restraint principle applies with particular force. If it is shown that the historical mistreatment and cultural views of another group combine to make imprisonment ineffective in achieving the goals of sentencing, it has been suggested that a court may consider those factors in applying the restraint principle in sentencing individuals from that group: see *R. v. Borde*, [...]. There was no evidence in the mass of material adduced in these proceedings to suggest that poor black women share a cultural perspective with respect to punishment that is akin to the aboriginal perspective.”

Sentencing Black Offenders

R v “X” (2014)

R v “X”, 2014 NSPC 95 (per Derrick J.)

“I find [the expert report] raises significant questions about the assessment of “X” as a criminally-entrenched, sophisticated youth. It provides a more textured, multi-dimensional framework for understanding “X”, his background and his behaviours. “X” has been both a perpetrator and a victim of violence in the context of his criminally-impacted community. [The expert] evidence gives me a lens through which to view “X” in determining this application.”

Sentencing Black Offenders

R v Jackson (2018)

R v Jackson, 2018 ONSC 2527 (per Nakatsuru J.)

“[1] About making change, let me quote Dr. Martin Luther King Jr.: “Take the first step in faith. You don't have to see the whole staircase, just take the first step.”

[2] So it is with sentencing Mr. Jamaal Jackson, a Black man. Too many African Canadians are serving time in jail. Something more needs to be done. In this case, I hope to take a small step in changing that.

[3] I will begin by saying this. Sentencing is and has always been a very individual process. A judge takes into account the case-specific facts of the offence and the offender to determine a just and fit sentence. When it is right to do so, a sentencing judge must take into account discrimination, both systemic and blatant. This has always been the case. Judges have always had to do so.

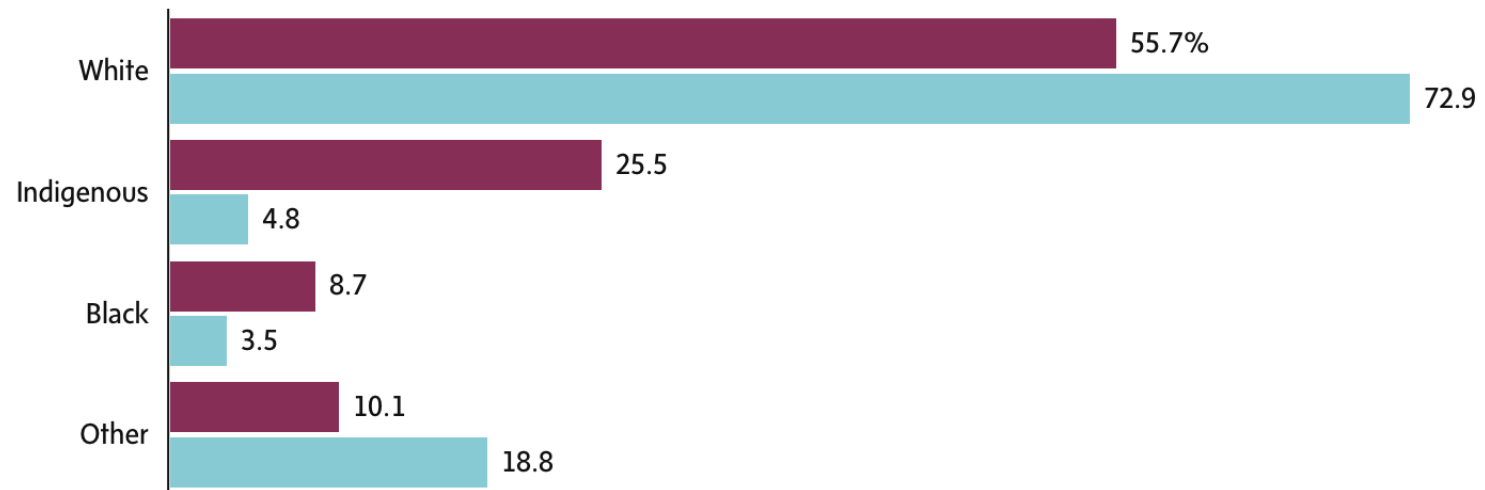
[4] That said, there remains a problem. Disproportionately, African Canadian offenders are serving jail sentences. Often very long ones.”

Sentencing Black Offenders

2016 data

Proportion of prisoners and Canadian population by race

● Prison population in 2016 ● Canadian population



THE GLOBE AND MAIL, SOURCE: CORRECTIONAL SERVICE OF CANADA, STATISTICS CANADA

[DATA](#) [SHARE](#)

[Source: The Globe and Mail \(December 30, 2020\)](#)

Sentencing Black Offenders

R v Morris (trial decision)

R v Morris, 2018 ONSC 5186 (per Nakatsuru J.)

“In my opinion, we have to get past this idea of waiting for the perfect person to be lenient. Waiting for the most benevolent soul by the standards of the privileged and the few, before we decide to extend consideration for leniency. For we may be waiting a long time. The young man who makes the choice to pick up a loaded illegal handgun will not likely be a product of a private school upbringing who has the security of falling back upon upper middle class family resources. Rather, he is likely to be a product of oppression, despair, and disadvantage. Likely he is someone who cannot turn his life around on a dime even if he wanted to. In short, he is you, Mr. Morris.

So in the final analysis, what makes this sentencing different from other cases where leniency was not given is that I have been given a wealth of information to sentence you. Information that can be used to take further steps to deal with the over-incarceration of Black people in this country.” (paras. 84-85)

Sentencing Black Offenders

R v Morris (appeal decision)

“For the reasons set out below, we come to the following conclusions:

- The trial judge’s task in sentencing is to impose a just sentence tailored to the individual offender and the specific offence in accordance with the principles and objectives laid out in Part XXIII of the *Criminal Code*;
- Social context evidence relating to the offender’s life experiences may be used where relevant to mitigate the offender’s degree of responsibility for the offence and/or to assist in the blending of the principles and objectives of sentencing to achieve a sentence which best serves the purposes of sentencing as described in s. 718;
- The gravity or seriousness of an offence is determined by its normative wrongfulness and the harm posed or caused by that conduct in the circumstances in which the conduct occurred. Accordingly, unlike when assessing the offender’s degree of personal responsibility, an offender’s experience with anti-Black racism does not impact on the seriousness or gravity of the offence;

Sentencing Black Offenders

R v Morris (appeal decision cont'd)

[...]

- Courts may acquire relevant social context evidence through the proper application of judicial notice or as social context evidence describing the existence, causes and impact of anti-Black racism in Canadian society, and the specific effect of anti-Black racism on the offender;
- Consistent with the rules of admissibility, a generous gateway for the admission of objective and balanced social context evidence should be provided;
- The *Gladue* methodology does not apply to Black offenders. However, that jurisprudence can, in some respects, inform the approach to be taken when assessing the impact of anti-Black racism on sentencing.”

Sentencing Black Offenders

R v Anderson, 2021 NSCA 62

“[118] The “method” employed for sentencing African Nova Scotian offenders should carefully consider the systemic and background factors detailed in an IRCA. It may amount to an error of law for a sentencing judge to ignore or fail to inquire into these factors. A judge does not have to be satisfied a causal link has been established “between the systemic and background factors and commission of the offence...” These principles parallel the requirements in law established by the Supreme Court of Canada in relation to *Gladue* factors in the sentencing of Indigenous offenders. As with Indigenous offenders, while an African Nova Scotian offender can decide not to request an IRCA, a sentencing judge cannot preclude comparable information being offered, or fail to consider an offender’s background and circumstances in relation to the systemic factors of racism and marginalization. To do so may amount to an error of law.”

(per Derrick JA)

Sentencing Black Offenders

Federal data (2022)

“Accused Persons

- In 2015/2016, Black people (adults and youth) were twice as likely to be accused in comparison to the general population; Black people accounted for 6% of all accused, while representing only 3% of the Canadian population at the time. ([Justice Canada, 2023](#))

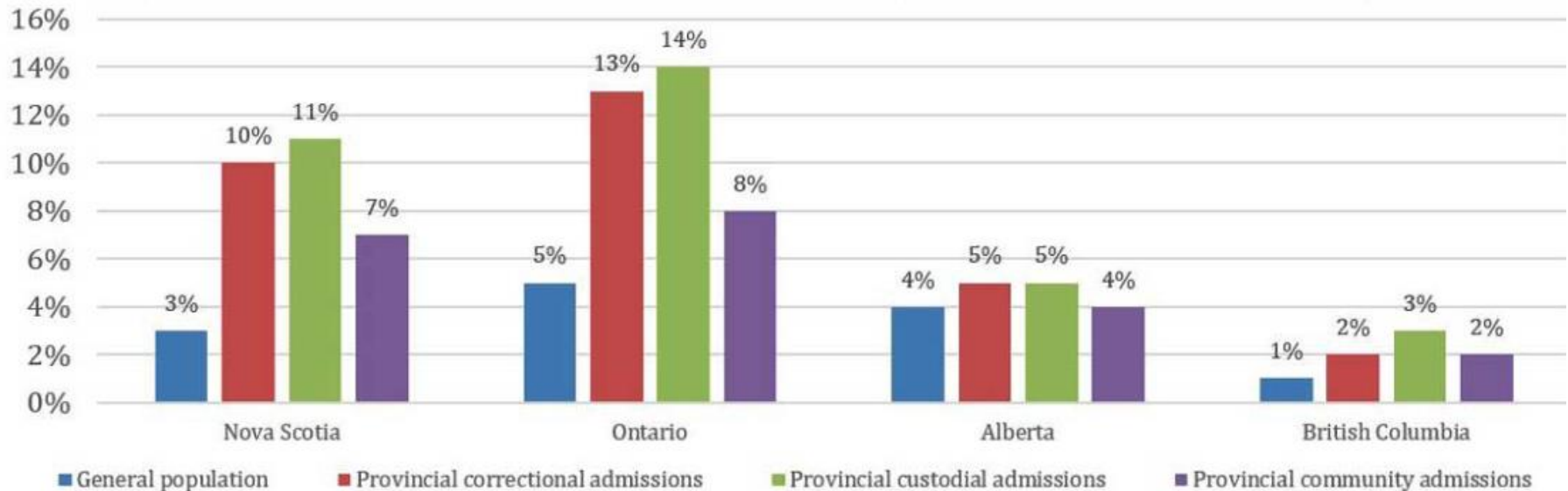
Incarcerated People

- In 2020/2021, despite representing about 4% of adults in Canada, Black people accounted for 9% of the total offender population in federal corrections. ([Justice Canada, 2022](#))
- Black people have overall lower rates of reoffending and lower returns to custody. The majority of Black offenders (85.8%) are not re-admitted to federal custody within 5 years following the expiration of their sentence. ([Correctional Service Canada, 2022](#))
- Despite the lower rates of reoffending and returning to custody, Black people are more likely to be assessed as higher risk, low motivation, and low reintegration potential. ([Office of the Correctional Investigator, 2022](#))”

Sentencing Black Offenders

Provincial data (2020-2021)

Figure 3: Representation of Black adults in the general population and admissions to provincial correctional services, Nova Scotia, Ontario, Alberta, British Columbia, 2020/21



Source: Government of Canada

Sentencing Black Offenders

Provincial data (2023/2024)

- Reporting available for: Nova Scotia, Ontario, Alberta, BC
- “In 2023/2024, Black persons in custody from the four reporting provinces accounted for **12.8% of the custodial population on an average day**, while they made up **3.3% of the general adult population.**”
- “In 2023/2024, the overall Black overrepresentation index score was 3.0, indicating that **Black adults were incarcerated at three times the rate of white adults.**”

Source: Statistics Canada

A short reflection...

Think about our units on sentencing Indigenous and Black offenders...

- **What is most surprising?**
- **What is most disappointing?**
- **What is most encouraging?**

Objectives for Week 2 (continued)

10. Start to familiarize yourself with the structure of the *Criminal Code* and of individual criminal offences.
11. Define plea bargaining (i.e., resolution discussions) and consider how that practice relates to prosecutorial discretion.
12. Explain, in general terms, some of the procedural rules that informally allow anti-Black racism and other forms of discrimination to influence criminal prosecutions.

ARSON FOR FRAUDULENT PURPOSE

435 (1) Every person who, with intent to defraud any other person, causes damage by fire or explosion to property, whether or not that person owns, in whole or in part, the property, is guilty of

- (a)** an indictable offence and liable to imprisonment for a term of not more than 10 years; or
- (b)** an offence punishable on summary conviction.

Objectives for Week 2 (continued)

10. Start to familiarize yourself with the structure of the *Criminal Code* and of individual criminal offences.
11. Define plea bargaining (i.e., resolution discussions) and consider how that practice relates to prosecutorial discretion.
12. Explain, in general terms, some of the procedural rules that informally allow anti-Black racism and other forms of discrimination to influence criminal prosecutions.

The Criminal Justice Process in Ontario

- 1. A Crime is Investigated**
- 2. The Suspect is Compelled to Attend Court**
- 3. The Charge is Laid**
- 4. The Charge is Processed**
- 5. The Bail Hearing Takes Place**
- 6. The Accused is Arraigned**
- 7. Resolution Discussion or Pre-Trial Meeting May Take Place**
- 8. A Preliminary Inquiry May Take Place**
- 9. The Trial Takes Place**
- 10. The Verdict is Issued**
- 11. The Sentencing Takes Place**
- 12. An Appeal May Take Place**
- 13. The Offender Serves Their Sentence**
- 14. The Offender May Seek Parole**
- 15. The Offender May Seek a Record Suspension or Clemency**

The Criminal Justice Process in Ontario

Police Discretion

1. **A Crime is Investigated**
2. **The Suspect is Compelled to Attend Court**
3. **The Charge is Laid**
4. The Charge is Processed
5. The Bail Hearing Takes Place
6. The Accused is Arraigned
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The Criminal Justice Process in Ontario

Crown (Prosecutorial) Discretion

1. A Crime is Investigated
2. The Suspect is Compelled to Attend Court
3. The Charge is Laid
4. The Charge is Processed
5. The Bail Hearing Takes Place
6. The Accused is Arraigned
7. Resolution Discussion or Pre-Trial Meeting May Take Place
8. A Preliminary Inquiry May Take Place
9. The Trial Takes Place
10. The Verdict is Issued
11. The Sentencing Takes Place
12. An Appeal May Take Place
13. The Offender Serves Their Sentence
14. The Offender May Seek Parole
15. The Offender May Seek a Record Suspension or Clemency

The Criminal Justice Process in Ontario

(Verdict)

- 1. A Crime is Investigated**
- 2. The Suspect is Compelled to Attend Court**
- 3. The Charge is Laid**
- 4. The Charge is Processed**
- 5. The Bail Hearing Takes Place**
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- 15. The Offender May Seek a Record Suspension or Clemency**

The Criminal Justice Process in Ontario

(Sentencing)

- 1. A Crime is Investigated**
- 2. The Suspect is Compelled to Attend Court**
- 3. The Charge is Laid**
- 4. The Charge is Processed**
- 5. The Bail Hearing Takes Place**
- 6. The Accused is Arraigned**
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The Criminal Justice Process in Ontario

(Post-Conviction)

- 1. A Crime is Investigated**
- 2. The Suspect is Compelled to Attend Court**
- 3. The Charge is Laid**
- 4. The Charge is Processed**
- 5. The Bail Hearing Takes Place**
- 6. The Accused is Arraigned**
- 7. Resolution Discussion or Pre-Trial Meeting May Take Place**
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The Criminal Justice Process in Ontario

Crown (Prosecutorial) Discretion

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Prosecutorial Discretion

- Prosecute a charge laid by police (recall: can proceed, withdraw, seek a different charge)
- Stay the proceedings
- Pursue a dangerous offender application
- Recommend a particular sentence
- Initiate an appeal
- Proceed summarily or by indictment (hybrid)
- Negotiate a plea-bargain
- Etc.

Crown Prosecution Manual

“A charge may only proceed if there a reasonable prospect of conviction; and it is in the public interest.”

Boucher v The Queen (1954)

“[T]he purpose of a criminal prosecution is not to obtain a conviction; it is to lay before a jury [or judge] what the Crown considers to be credible evidence relevant to what is alleged to be a crime.”

“The position held by counsel for the Crown is not that of a lawyer in civil litigation. His functions are quasi-judicial. His duty is not so much to obtain a conviction as to assist the judge and the jury in ensuring that the fullest possible justice is done.” (Taschereau J., dissenting but not on this point)

Objectives for Week 2 (continued)

10. Start to familiarize yourself with the structure of the *Criminal Code* and of individual criminal offences.
11. Define plea bargaining (i.e., resolution discussions) and consider how that practice relates to prosecutorial discretion.
12. Explain, in general terms, some of the procedural rules that informally allow anti-Black racism and other forms of discrimination to influence criminal prosecutions.

Plea Bargain

(plea agreement/negotiated settlement/settlement agreement)

“[A]n agreement by the accused to plead guilty in return for the prosecutor's agreeing to take or refrain from taking a particular course of action” (Law Reform Commission of Canada)

Plea Bargain

- **Charge bargain**: prosecutor agrees to reduce/drop charges and allow the accused to plead guilty to fewer/less serious charges
- **Sentence bargain**: prosecutor agrees to take a particular course of action at the sentencing stage

Trial Rates

Ontario Court of Justice (April 2024 to March 2025):

- 14,097 cases [case = all charges on information for single accused]
- 12,753 withdrawn/stayed before trial
 - 4,581 resolved by guilty plea before trial
- 373 withdrawn at trial
 - 296 guilty plea at trial
- 282 cases disposed of following trial
- *Trial rate: 2.1%*

Objectives for Week 2 (continued)

10. Start to familiarize yourself with the structure of the *Criminal Code* and of individual criminal offences.
11. Define plea bargaining (i.e., resolution discussions) and consider how that practice relates to prosecutorial discretion.
12. Explain, in general terms, some of the procedural rules that informally allow anti-Black racism and other forms of discrimination to influence criminal prosecutions.

Ontario Human Rights Commission, “A Disparate Impact”

- **Charge rate** 3.9x higher for Black people than White people
 - Less likely to result in conviction
- 42.5% people involved in obstruct justice charges
- 35.2% people involved in “out-of-sight” driving charges
 - Compare 8.8% Toronto population (2016 data)

Objectives for Week 2 (continued)

10. Start to familiarize yourself with the structure of the *Criminal Code* and of individual criminal offences.
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